



FORMAL COMPLAINT – Unlawful Refusal to Open Criminal Case & Abuse of Authority

| Station Commander | Delft Police Station | 23 February 2026

1 message

Wilbur William Matthee <info@ethichawks.co.za>Tue, 24 Feb 2026 at 08:00

To: saps.provcomm.wc@saps.gov.za

Cc: wc.pcc.complaints@saps.gov.za

Bcc: wilburmat@gmail.com

Dear Provincial Commissioner,

I write to formally report the conduct of the Station Commander at Delft Police Station on 23 February 2026, who unlawfully refused to open a criminal case against Medscheme Holdings (Pty) Ltd despite being presented with documentary evidence of criminal conduct under the Unemployment Insurance Contributions Act 4 of 2002 and the Basic Conditions of Employment Act 75 of 1997.

I recorded the interaction in full. The recording is attached.

GROUNDS OF COMPLAINT:

1. UNLAWFUL REFUSAL TO OPEN A CRIMINAL CASE
- In terms of SAPS National Instruction 3 of 2008, a member of the public has the right to open a criminal case and SAPS is obliged to register it. The assessment of prosecutorial merit belongs exclusively to the National Prosecuting Authority – not to a station commander. The Station Commander refused to open a case on the basis of his own merit assessment, made without reviewing any of the documentary evidence I presented. This constitutes a direct violation of my constitutional right of access to justice under section 34 of the Constitution of the Republic of South Africa, 1996.
2. REFUSAL TO EXAMINE EVIDENCE
- I presented the Station Commander with the following documentary evidence:
- ufiling.labour.gov.za portal extracts confirming June 2025 non-declaration
 - Payslips confirming UIF contributions were deducted
 - Written misrepresentation emails from two senior HR officials
 - DEL complaint file and integrated inspection allocation
- The Station Commander declined to examine any of this evidence before determining that 'there is no case' and that 'it is not a fraud.' A determination made without examining evidence is not a lawful exercise of discretion – it is a predetermined conclusion.
3. USURPATION OF THE FUNCTION OF THE NATIONAL PROSECUTING AUTHORITY
- The Station Commander stated that he is in charge and that he decides whether there is a case or not. This statement reflects a fundamental misunderstanding of his role and the separation of functions between SAPS and the NPA. The decision on prosecutorial merit is not within his jurisdiction. By arrogating that function to himself and using it to refuse to open a case, he acted outside the scope of his lawful authority.
4. INTIMIDATION OF A COMPLAINANT EXERCISING A CONSTITUTIONAL RIGHT
- When I requested a case number – which is my right as a complainant – the Station Commander characterised this as an attitude problem. The lawful exercise of a constitutional right cannot be characterised as misconduct by the complainant. This response constitutes an attempt to intimidate me into withdrawing a legitimate complaint and is itself a violation of my rights.
5. DOCUMENTED EVIDENCE OF CRIMINAL CONDUCT DISMISSED WITHOUT REVIEW
- The complaint I sought to open concerns a JSE-listed company – AfroCentric Health Ltd (JSE: ACT), through its subsidiary Medscheme Holdings (Pty) Ltd – whose senior officials made written misrepresentations of statutory

compliance on 19 January 2026, directly contradicted by the official government uFiling portal on five independently verified dates spanning 39 days. This evidence was available for the Station Commander's review. He chose not to look at it.

RELIEF REQUESTED:

1. That this complaint be formally registered and a reference number issued;
2. That the conduct of the Station Commander at Delft Police Station on 23 February 2026 be formally investigated;
3. That a competent officer be directed to open the criminal case I sought to register, and to review the documentary evidence I presented; and
4. That the matter be referred to an officer with appropriate financial crime competency, or alternatively referred to the Directorate for Priority Crime Investigation with whom I have simultaneously lodged a formal complaint.

I respectfully note that I am a destitute, self-represented whistleblower currently facing imminent loss of accommodation and living with a formally diagnosed psychiatric disability. Every day this matter remains unresolved causes me direct and ongoing financial harm.

I am available to provide all documentation immediately.

Yours faithfully,

Sr. Wilbur William Matthee

SANC No: 1583 1886 | RN, BTech(General nursing, Psychiatry, Midwifery, and Community health R425), PG Dip HSM (NQF 8)

info@ethichawks.co.za | wilburmat@gmail.com

EthicHawks Consulting | 24 February 2026

ANNEXURES:

Annexure A — Recording of Delft Police Station interaction, 23 February 2026

Annexure B — ufiling.labour.gov.za portal extracts confirming June 2025 non-declaration

Annexure C — Formal criminal complaint statement dated 23 February 2026

Annexure D — Hawks complaint dated 23 February 2026

Wilbur William Matthee

RN, BTech (Psych, Midw, Comm (R425)), PG Dip HSM (NQF 8)

4 attachments



Screenshot_20260223_125307_Chrome.jpg

2,4 MB



V0.PDF

175 KB



DELFT police station.m4a

21,3 MB



Gmail - FORMAL CRIMINAL COMPLAINT — Fraud & UIF Contributions Act Contravention _ Medscheme Holdings (Pty) Ltd _ Supporting .PDF

86 KB